struction on each site of a private cottage owned individually and used, or to be used, for private recreational purposes.

(3) *Colony cottage site.* A parcel of land containing (i) multiple cottage sites developed or to be developed individually by members of an organization to which the land is currently leased by the construction on each site of a private cottage owned individually and used or to be used for private recreational purposes, and (ii) a site or sites developed or to be developed by the lessee by construction of community recreational facilities for joint use by all members of the lessee organization incident to occupancy of their privately owned cottages on the leased premises and/or an area of land to be preserved in an undeveloped state for such joint use by all members of the lessee organization.

§ 211.73 *Determination of land available for sale.* The Chief of Engineers or the Assistant Chief of Engineers for Civil Works is hereby delegated authority to determine that lands in reservoir areas under the jurisdiction of the Department of the Army, other than lands withdrawn or reserved from the public domain, (a) are not required for project purposes or for public recreational use, and (b) are being used for or are available for cottage site development and use, and to determine that such lands are available for sale for cottage site development and use. The Chief of Engineers or the Assistant Chief of Engineers for Civil Works is authorized to withdraw any lands determined available for sale for cottage site development and use at any time prior to the execution of a contract of sale for such lands, provided, he determines that such withdrawal will facilitate the administration of the reservoir area or will otherwise be in the public interest.

§ 211.74 *Public notice of the availability of land for sale.* Upon determination in accordance with the regulations of §§ 211.71 to 211.81 that land is available for sale for cottage site development and use, the appropriate District Engineer, U. S. Army Engineer District (hereinafter referred to as the District Engineer) will give public notice of the availability of such land for sale, subject to such conditions, reservations and restrictions as are required by the act and such other conditions, reservations and restrictions as the Chief of Engineers or the Assistant Chief of Engineers for Civil Works may determine to be necessary for the management and operation of the project, or for the protection of lessees or owners of cottage sites within the area. Public notice of the availability of such land for sale will be by: (a) Publication at least twice, at not less than 15-day intervals, in two newspapers having general circulation in the vicinity in which the land is located; (b) written notification to any persons or organizations known to be interested in acquiring a cottage site in the area; (c) posting of notices in public places; and, (d) in addition, where any site on which a lease for cottage site purposes existed on August 6, 1956, is available, notice will be given by registered letter to the lessee at his last known address.

§ 211.75 *Price.* The Chief of Engineers, or his designee, is authorized to determine the fair market value of any site determined available for sale for cottage site development and use based on an appraisal thereof by a qualified appraiser. Sale of a cottage site to a lessee holding a lease on the date of the act will be made for a price equal to the fair market value of the site at the time of the sale.

§ 211.76 *Costs of surveys.* The costs of any surveys or the relocation of boundary markers deemed necessary by the District Engineer as an incident of the conveyance of lands under the regulations of §§ 211.71 to 211.81 shall be borne by the grantee.

§ 211.77 *Sale procedure.* Any individual cottage site offered for sale generally will not contain more than approximately one acre. Not more than one site at any one reservoir will be sold to any person or organization. Sales to lessees of lands determined available for sale for cottage site development and use, who have a priority to purchase under the provisions of the act, will be accomplished by negotiation. Sales to lessees who do not have a priority to purchase under the provisions of the act may be accomplished by negotiation in the discretion of the Chief of Engineers or the Assistant Chief of Engineers for Real Estate. Sales to persons other than lessees will be accomplished by public auction, or sealed bids, in accordance with procedure prescribed by the Chief of Engineers. If no acceptable bid or offer is received as a result of a public auction or solicitation for sealed bids, sale may be accomplished by negotiation in accordance with procedure prescribed by the Chief of Engineers.

§ 211.78 *Maintenance and conveyance of access roads.* The Government will not construct any roads for the sole purpose of providing access to lands sold or to be sold for cottage site development and use. The Government shall be under no obligation to service or maintain existing roads used primarily for access to lands sold for cottage site development and use. Any lands determined by the Chief of Engineers, or the Assistant Chief of Engineers for Civil Works as being used or to be used for roads primarily to serve any cottage site area sold under the authority of the act may be offered by the District Engineer for transfer to the State, any political subdivision thereof, or organization in accordance with the provisions of the act.

§ 211.79 *Contract for sale.* The agreement between the purchaser and the Government will be evidenced by a contract of sale. Authority is hereby delegated to the Chief of Engineers or the District Engineer to accept any offer which meets the requirements of the act and the regulations of §§ 211.71 to 211.81 and to execute the contract of sale on behalf of the United States of America.

§ 211.80 *Conveyance.* The conveyance of land for cottage site development and use or for access roads will be by quitclaim deed executed by the Secretary of the Army.

§ 211.81 *Reservoir areas.* Delegations, rules and regulations in §§ 211.71 to 211.80 are applicable to:

(a) Fort Gibson Reservoir Area, Oklahoma.

(b) Lake Texoma and the Denison Reservoir Area, Oklahoma and Texas.

(c) Tenkiller, Ferry Reservoir Area, Oklahoma.

[Regs. April 1, 1957, 602 ENGLT]

[SEAL] HERBERT M. JONES,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 57-3262; Filed, Apr. 22, 1957; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[1878190]

[Anchorage 031764]

[Public Land Order No. 1404, Corr.]

ALASKA

TRANSFERRING A PORTION OF THE LANDS RESERVED BY EXECUTIVE ORDER NO. 8877 OF AUGUST 29, 1941, FROM THE DEPARTMENT OF THE ARMY TO THE DEPARTMENT OF THE NAVY; PARTIALLY REVOKING AND AMENDING EXECUTIVE ORDER NO. 8877; CORRECTION

APRIL 17, 1957.

The land description contained in paragraph 1 of Public Land Order No. 1404 appearing as Federal Register Document 57-2703 at page 2346 of the issue for April 9, 1957, so far as such description refers to longitude 153°13'' W., is corrected to read longitude 152°13'' W.

E. J. THOMAS,
Associate Director.

[F. R. Doc. 57-3264; Filed, Apr. 22, 1957; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10239; FCC 57-386]

[Amdt. 2-30]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

FREQUENCY ALLOCATIONS

1. At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 17th day of April 1957;

2. The Commission having under consideration its proposal in the above-mentioned matter, which would allocate the Atlantic City coast telegraph bands exclusively to the maritime mobile service for use by coast telegraph stations in the Commission's table of frequency allocations; and